



File No.: EXP202406780

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on April 22, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the complainant) exercised the right of access against COFARES SOCIEDAD COOPERATIVA FARMACÉUTICA ESPAÑOLA (hereinafter, the respondent) without receiving the legally established response to their request.

The complainant states that on January 4, 2024, they submitted a request for access to their data to the respondent entity, receiving a response regarding this on February 2, 2024. They indicate that in such response, a copy of all the data processed by the respondent was not provided, as the respondent urged them to access their personal area on the respondent's website to obtain the same, referring to the information collected in the privacy policy of the respondent.

Considering that this response was not complete, on February 6, 2024, the complainant sent a new email to the respondent requesting information about the data processing carried out by entities linked to the respondent to which the respondent might have provided their data, indicating that the documentation provided was only related to that processed by the company's credit area, receiving a response on the same date stating that what was sent was all the information they had regarding the complainant.

For the reasons stated, the complainant believes that an adequate response to their access request has not been provided.

They provide a copy of their request, the response received, the email sent by the complainant regarding the response received to their right of access, and a new email sent by the respondent.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the complainant's claims were satisfied. Consequently, on July 22, 2024, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing period, so that within ten working days, they could present any allegations they deemed appropriate, summarizing the following allegations:

"That in light of the facts, it is demonstrated that COFARES has at all times attended to the right in an exquisite and lawful manner, evidencing at all times in the various communications they have had with the interested party since the exercise of the right their actions in accordance with data protection regulations, including beyond and completing the information provided with technical information prepared by the Security team, having attended to the right in the most complete manner possible and making COFARES available to the interested party at all times."

FOURTH: After examining the document submitted by the respondent, it is forwarded to the complainant, so that within ten working days they can formulate any allegations they consider appropriate, summarizing the following allegations:

"Regarding the allegations made by the opposing party, we express our absolute disagreement. COFARES avoids mentioning in their allegations the reason for the unavailability of the documentation containing personal data that they hold, placing the weight of their argumentation on the proportion of IP addresses, Cookie IDs, and passwords in order to distract from the true focus of the access exercise."

This is due to the intention of the entity Cofares to prevent A.A.A. from knowing that they are processing personal data for purposes different from those for which the personal information was collected."

FIFTH: After examining the document submitted by the complainant, it is forwarded to the respondent, so that within ten working days they can formulate any allegations they consider appropriate. The respondent submits a document with 224 pages, in which they substantiate all the documentation that has been sent to the complainant since their first request for the exercise of the right of access and completes it with the information that the complainant requested by reiterating in their document of October 28, 2024, that the access was incomplete.

SIXTH: After examining the document submitted by the respondent, it is forwarded to the complainant, so that within ten working days they can formulate any allegations they consider appropriate, summarizing the following allegations:

"The reason for our represented party's disagreement lies in the fact that there are well-founded suspicions that the current holder of the loan is benefiting from advantageous conditions to verify and assess solvency and risk."

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credit due to the improper use and maintenance of the personal data of A.A.A. by Banco Santander and COFARES. This improper use would aim to maintain a mortgage loan contract under the same conditions that my client had, despite the fact that, since November 7, 2023, she ceased to be linked to said mortgage-backed loan."

LEGAL GROUNDS

I

Competence

According to the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure. Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent party for analysis, requiring a response to this Agency within one month and proof of having provided the complainant with the appropriate response.

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The result of this forwarding did not allow for the understanding that the claims of the complainant were satisfied. Consequently, on July 22, 2024, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the opening of the present procedure for failure to respond to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“When the procedure refers exclusively to the failure to respond to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the agreement of admission to processing was notified to the complainant. After this period, the interested party may consider their complaint to be upheld.”

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including “ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation.”

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to state its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and plain language.

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IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, “the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data.”

Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the data subject to specify the “data or processing activities to which the request refers.” The right will

be considered granted if the controller provides remote access to the data, with the request being deemed addressed (although the data subject may request information regarding the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the data subject chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the data subject.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decision-making, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others.

V

Conclusion

We will begin by stating that this claim will only consider whether the requested right, the right of access, has been addressed or not. The other issues raised by the claimant and the respondent regarding other matters will not be taken into account in this resolution.

In the case analyzed here, the claimant exercised their right of access and, after the period established in the aforementioned regulations, their request was met.

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legally enforceable response, but the claimant stated at the time that the access was incomplete, therefore requesting full access.

During the processing of this procedure, the responding entity has replied to this Agency and to the claimant on three occasions, demonstrating that it has addressed the requests made by the claimant, sending the required response to their request. The claimant states that they do not agree with any of the responses sent by the responding party and insists that COFARES provide and disclose all the requested personal information.

In its last written submission dated November 18, 2024, the responding party considers that the claimant has already been able to satisfy the exercise of the right of access, as COFARES has expanded the information on several occasions, but the claimant, in their submission to this Agency dated December 16, 2024, continues to insist that the requested personal information is still missing. Once all the documentation sent by the responding party has been examined, it must be stated that it has sent the claimant all the information they requested in their last submission dated October 28, 2024 (multichannel contracts, debit cards, SOLRED contract, loan cancellation contracts for a housing loan, loan account opening, savings current account, professional credit account, and other contracts) and has duly evidenced this before this Agency.

The aforementioned regulations do not allow the request to be overlooked as if it had not been made, leaving it without the response that the responsible parties must issue, even in cases where there are no data of the interested party in the entity's files or even in those cases where the requirements are not met, in which case the recipient of such a request is also obliged to require the correction of the observed deficiencies or, if applicable, deny the request with justification indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the responsible party to provide an express response, in any

case, using any means that justifies the receipt of the response.

In this regard, it should be noted that the response that corresponds to be made cannot be expressed merely as part of an administrative procedure. Consequently, considering that the purpose of this procedure is to ensure that the guarantees and rights of the affected parties are duly restored, combining the information in the file with the regulations referred to in the preceding sections, it is appropriate to uphold this complaint on formal grounds due to the late issuance of the response, without requiring the responsible party to carry out additional actions in order to issue a new certification regarding the exercise of the right.

In view of the cited provisions and other generally applicable regulations, the Presidency of the Spanish Agency for Data Protection RESOLVES:

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FIRST: TO UPHOLD on formal grounds the complaint filed by A.A.A. against COFARES SOCIEDAD COOPERATIVA FARMACÉUTICA ESPAÑOLA. However, the issuance of a new certification by the responding party is not warranted, as the response was issued late, and no additional actions are required from the responsible party.

SECOND: NOTIFY this resolution to A.A.A. and to COFARES SOCIEDAD COOPERATIVA FARMACÉUTICA ESPAÑOLA.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

1381-090823

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to the vacancy of the Presidency and Deputy Presidency

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